



4. ORAL EVIDENCE

Chapter objectives:

Dear learners, after successfully culminating this chapter you will be able to:

- ✓ Explain the importance of oral evidence in proving facts;
- ✓ List the grounds of incompetence;
- ✓ Identify what hearsay evidence mean;
- ✓ Explain the justifications for privileges; And
- ✓ List the type of privileges.



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4.1. Oral Evidence: Definition

- The Blacks law dictionary, defines oral evidence: *Verbal evidence which is given by word of mouth.*
- It is the oral testimony given by witnesses in court.
- Oral evidence is ordinary kind of evidence given **by witness by word of mouth.**
- it is statement made by a **competent witness**, under oath or affirmation, usually related to legal proceeding.



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4.2. Who gives the Oral Evidence?

- A witness gives the oral evidence.
- Witness, in general, is one who **being present**, **personally sees** or **perceives** a thing; to testify before a court.
- A witness who has seen first hand is known as an **eye- witness**.
- As a witness, an expert witness testifies not only what he has seen, heard, or otherwise observed personally but he may also offer an opinion **applying his expert knowledge to facts he has not personally observed**.
- Oral evidence, therefore, includes the statement of witness before the court.



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4.3. Oral Evidence: Importance

- In order to establish the true fact through the accurate evaluation of relevant and reliable evidence and assist in the achievement of rectitude or correctness of decision making.
- In case of absence of documentary evidence, especially in criminal cases that most of time it is hard to get documentary evidence, the possible option to prove the alleged fact is by producing oral evidence.



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4.4. Oral Evidence: Nature and Development of in Different Legal Systems

A. Common Law

- oral evidence is given considerable weight and will usually prevail over written evidence.
- Counsel often makes motions and objections orally, and the judge acts as umpire, ensuring that the rules on procedure and evidence are followed.
- The jury 's role is firstly to decide questions of fact, i.e., to makeup their minds between conflicting accounts as to what happened and then to decide on the guilt or innocence of the defendant.
- In common law, counsel would normally prepare his witnesses for the hearing in order to avoid surprises during the trial and to make sure that the witness statements are accurate.



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B. Civil Law

The determination of what issues to rise, what evidence to introduce, and what arguments to make is left almost entirely to judge.

questions are to put to witness by the judge instead of by counsel for the parties or by the parties themselves.

in civil law, the preparation of witnesses is strictly forbidden.

The attorneys are normally not allowed to discuss the issues related to trial with witnesses out of court and may face disciplinary sanctions if they breach this rule.



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4.5. Competence of witnesses

- What do you think must a person fulfill to be a witness?
- A **competent witness is one who is fit and commonly gives his testimony** before courts or a judicial proceeding under oath or affirmation.
- A competent witness is one who is able to testify or one whom nothing prevents from testifying unless there are some conditions which bar him from doing so.



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4.5.1. Types of Competency of Witnesses

A. General Competency

- It is about telling to the court what one has **heard, seen, smelt, touched, etc.** It is widely accepted that every body is presumed to be competent.
- **That is**, with the exception, perhaps, of certain witnesses, general competency is presumed.
- **Thus**, to be included as witness in the general competency a person must possess **the organic and moral capacities.**
- This is to mean that the test to competency relates to **the ability to understand questions and give rational answers.**



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B. Special Competency

- Special competency refers to a witness's ability to **testify to opinions or conclusions he has** arrived at by evaluating facts he has observed, facts presented to him by counsel or a combination of both types of facts.
- That is, special competency refers to the ability to **analyze facts about which one testifies.**
- For example, if you go to a hospital you don't tell your illness to the doctor, but you tell the facts about your illness, then, he analyzes the facts and tells you what you are suffering from.
- Unlike general competency of witnesses, **special competency is not presumed.**
- Special competency of witnesses is subdivided in to two: **(1) layman's opinion**, and **(2) expert opinion** given as testimonies.



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4.5.2. Grounds of incompetence

- The competency of ordinary witnesses has its own exceptions.
- These exceptions are the incompetence of the ordinary witnesses due to lack of **organic and moral capacities** of presumed witnesses.
- **Thus**, the above quotation may enable us to say that the competency of *ordinary witness is the general rule while their incompetence is the exception*.
- There are few grounds, in the Rule 39 of the Court Rules of 1943, and Rule 92 of Draft Evidence Rule, which make a person incompetent from testifying before courts of law.



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a. Mental incapacity

- The incompetence of mentally incapacitated persons was a ground for raising objections in both the common law and the Ethiopian legal system.
- It comprises children, insane, and intoxicated persons, whose conditions may be long lasting or intermittent in nature.
- Here, we can understand that having intellectual capacity of observation, recollection, narration or communication of what has been observed and recollected and understanding the duty of telling the truth are the main elements to be considered in the process of determining the competency or incompetence of a required witness.
- To tell the truth in the court proceedings, he may, if otherwise incompetent, testify as a witness.



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- The DER, which is substantially the same with common law, under its rule 92 states that **a child or a person with mental defects are generally competent (1) if they understand the questions put to them and (2) rationally answer them.**
- In addition to this, the DER in Rule 104(1) includes a second test for the competency of a child or mentally infirm witness:
- To give answers or an affirmed testimony, such a witness must not only be possessed of sufficient intelligence to justify reception of the evidence but also **(3) he must understand the duty to speak the truth.**



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- **What is more**, the testimony of every witness, including mentally deranged ones, was and still is subject to the assessment of court.
- **Thus**, by way of interpretation, mentally defective persons are permitted to have the right to tell to the court what they have in mind because there **is inherently presumed civil right of persons to stand as witness before courts**.
- In proactive too, courts accept any witness when necessary for both civil and criminal cases, though the general provision in the **civil code dealing with contracts excludes some persons from being witnesses to a contract**.



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b. Physical incapacity

- This covers those persons, who have **visual, hearing, and speaking deficiencies**. Such persons can, in principle, perceive the occurrence or non-occurrence of certain events.
- **However**, defects such as blindness, deaf or dumb may impair the power of observation to make a given witness incompetent to testify.
- **Nonetheless**, according to the general rule, **physical incapacity is no bar to a witness's competency** as long as he **can understand the questions put to him and give rational answers to those questions**.
- Rule 92(2) of DER by supporting the above assertion states that, if a person cannot speak, see and hear, he may still testify if questions can be put to him in some accurate fashion and he can reply by **signs** or **writing** which can be accurately interpreted by some one sworn to do so accurately.



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- **Hence**, in Ethiopia, even though there is no law, which governs such issue, practically these types of persons **are not incompetent to stand as witnesses merely** because they are blind, deaf and dumb if they are able to **observe, recollect and communicate**.

c. Legal interdiction (Conviction of a crime)

- In present Ethiopia, this is no longer a bar to competency of a witness.
- This can be inferred from the substantive laws such as the **FDRE Constitution** and the procedural laws, i.e., Art 142 of the Criminal Procedure Code, and Art 268 of the Civil Procedure Code, and etc



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d. Interest in the outcome of the case as ground of incompetence

- This includes –parties to the case, consanguinal and affinal relatives, other emotional grounds and so on.
- In early times both criminal charges and civil suits, persons were disqualified as they were considered incompetent.
- There is no such restriction in the present times.
- The witness is presumed to be competent if he meets the requirements.



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4.6. Examination of witness

- Oral evidence is adduced in court by way of giving answers to questions put to the witness.
- There are three forms of questions, namely; examination in chief, cross-examination, and re-examination.
- It is the principle of evidence law that the party who bears the burden of proof has right to begin.
- **Thus**, as a rule the public prosecutor/plaintiff begin as the case may be then.
- The witness testifies by giving answer to examination- chief followed by cross-examination by the opposing party and re-examination by the calling party.



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a. Examination-in-chief

- Examination-in-chief is the processes where by a party who has called a witness to give evidence on his behalf elicits from that witness evidence **relevant to the issues** and **favorable to the examiner's case**.
- A witness is examined-in-chief when the party calling him questions him in court for the first time.
- examination-in-chief is a question put by the calling party to the witness so that the latter will tell the story about the fact he is asked. Art.137 of cr P c and Art.263 of civ.P c.
- The question put in examination-in-chief shall **only relate to facts**, which are relevant **to the issue to be decided** and to **such facts of which the witness has direct or indirect knowledge**



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- Leading question is prohibited in examination-in-chief.
- Leading questions-that is, a question that is phrased in such away that the desired answer is contained or implied in the question it self.
- Art. 263(2) of civil procedure code and Art.137 (2) of the criminal procedure code in the same language stated ‘no leading question shall be put to a witness without the permission the court.



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b. Cross examination

- Cross-examination follows immediately the examination-in chief, unless the courts for some reason post pones it.
- In asking such questions, the examiner tries to weaken the testimony of a witness given through examination-in-chief.
- It is part of the constitutional mandate that the witness against him must confront an accused, and testimony is not allowed to remain as evidence if the accused has not had the opportunity to fully cross-examine the witness giving the testimony.
- As provided by civil procedure code article 263(3), a question in cross-examination shall tend to show to the court what is **erroneous**, **doubtful** the or untrue in the answer given in examination-in-chief.



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c. Re-examination

- Once a witness has been cross-examined; the party who called him is entitled try **to repair any damage done to his** evidence-in-chief by asking further question on the matters which arose during cross-examination.
- Re-examination logically results from the interaction between examination-in-chief and cross-examination.
- If testimony, which is giving in answer to examination-in-chief, is discredited by cross-examination, or shown to be **erroneous, doubtful or untrue** the party who has called the witness could re-examine the witness in the way to cure what is damaged during cross-examination. (art. Cr.p.c139)



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4.7. Hearsay evidence

- Hearsay is legal term that describes statements made out side of court.
- **However**, all statement made out of court are not hearsay.
- In ordinary circumstance, hearsay may have various meanings, but the definition of hearsay under this topic is standardized in context of evidence rule and principles.
- This is a type of evidence given by a witness based on the information he has attained from the statements made by others.



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Admissibility of hearsay evidence?

Q. Dear students, is hearsay evidence admissible in Ethiopian as a rule?

For many reasons hearsay is in principle inadmissible.

1. Lack of cross- examination
2. Absence of oath
3. Testimonial infirmities (wrongly perceived the events in question)



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Exception to hearsay evidence

There are certain exceptions to the hearsay rule, which makes the hearsay evidence admissible.

1. **Dying Declaration** (Rule 29(a) Draft Evidence rule)
 - These are declarations made by a person who knows that his death is imminent, and a person cannot be found at the time the testimony is required.
 - A person who is going to die does not have the motive for which he has to lie.



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2. Statements made in the ordinary course of Business

- The idea behind this exception is that if the statement is made in the current habit of business, it is more likely to be trust worthy than otherwise.
- Rule 29(b) requires that the person who made statement in the ordinary courses of business should fulfill certain formalities in his courses of recording; **in particular it must consist:**
 - I. any entry or memorandum made by him in books kept in the **ordinary course of business** or **in the discharge of a professional duty**;
 - II. or an acknowledgement written or signed by him of the receipt of money; goods , securities or property of any kind;
 - III. Or a document used in commerce written or signed by him;
 - IV. or the date of a letter or other documents usually dated, written or signed by him.



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3. Declarations against interest rule 29(c) of DER

- There is an assertion that a person is not likely to make statements against his interest lightly or with causal regard for truth.
- This contributes to the trustworthiness of such statements and is the reason for this exception to the hearsay rule.

4. Statements of opinion as to the existence of a public or general right or custom.(rule 29(d)

- When it gives the opinion of any such person, as to the existence of any public right or custom or matter of public or general interest of the existence of which, if it existed, he would have been likely to be aware, provided it was made before any controversy as to such right custom or matter has arisen.